



Standard Operating Procedure (SOP) for

Misconduct Handling

Purpose:

To ensure legal compliance in case of Misconduct;

Workman acts and omissions which shall be treated as misconduct under Industrial and commercial employment (standing orders) Ordinance – 1968:

Procedure:

- The concerned DH to raise a written report / evidence against workman to HR Department.
- A Show Cause Notice Containing the allegation of misconduct to be issued and asked for written reply to workman within (4) days.
- Written reply of workman forwarded to his DH. The DH recommends disposal to proceed if not satisfied with reply or dismiss the case after having been satisfied with the reply.
- To proceed further an Enquiry Officer is appointed, date and time of enquiry communicated to workman for appearance before Enquiry Officer.
- If the workman desires for his assistance in the enquiry to nominate any workman employed in that establishment; is allowed as per law. Findings of Enquiry by Enquiry Officer forwarded to Employer / CEO to for disposal.
- In case of Long absence from duty without any information a written Show Cause Notice is issued to his Home Address through registered A.D. to call upon to explain his position in writing within seven (7) days of the receipt of the notice with regards to the circumstances alleged against Workman as to why disciplinary action should not be taken.
- In case, no reply is received within the period mentioned above. Second Show Cause Notice will be issued, wherein he is called upon to explain his position in writing within next seven (7) days of the receipt of second notice.
- If the workman failed to explain his position after both Show Cause Notices, It will be presumed that the workman has nothing to say in his defense and the matter will be decided after an Enquiry proceeding as per law.

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